

 Internal Case Management System Worksheet - Case Closing					Top Allegation OFFICIAL MISCONDUCT -	Group G22-GROUP 22 Date of This Report 01/20/2021	
Date Reported 10/24/2019	Date Assigned 10/24/2019	IAB Log No. 2019-38815	Case No. (G22) C-2019-298	Folder Type CORRUPTION	Preliminary Case Type CORRUPTION	Follow-Up No.	Worksheet Tracking No. 4854437

Topic/Subject (Case Closing) CASE CLOSING - PARTIALLY SUBSTANTIATED/MINOR PROCEDURAL VIOLATION	Activity Date 01/20/2021	Activity Time 15:45
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

>Case #:
C-2019-298

>Log #:
2019-38815
2019-38996
2020-7022
2020-22033

Subject Officer(s):
Police Officer Yusuf Sezen, Housing PSA4/Viper 6, Tax # 935726
Date of Appointment: 07/01/2004
Probation (at time of incident): No
Current Duty Status: Modified

Sergeant Avlon Beazer, 41st Precinct, Tax # 929696
Date of Appointment: 07/01/2002
Probation (at time of incident): No
Current Duty Status: Full Duty

Police Officer Donte Alarcon, 41st Precinct, Tax # 937953
Date of Appointment: 07/11/2005
Probation (at time of incident): No
Current Duty Status: Full Duty

Date Case Received:
October 29, 2019

Date of Occurrence:
October 21, 2019
Administrative Statute of Limitations Expires:
April 21, 2021

Classification:
C2 - Non Steering

Investigator:
Detective Jonathan Della Monica Tax # 948536

Team Leader:
Lieutenant James Carrero Tax # 929840

Overall Case Disposition:
Partially Substantiated/Minor Procedural Violation

Details:
2019-38815
On October 24, 2019 Sgt. Rivera, Yankee Stadium Detail Tax # 943735, reported that the complainant, [REDACTED], stated on October 17, 2019 she went to the 41st Precinct to obtain information for steps she can take in regards to the death of

her mother in Dominican Republic. [REDACTED] stated she spoke to an officer, PO Sezen, who helped her then provided her with his contact information. [REDACTED] further stated she gave PO Sezen her phone number as well. [REDACTED] stated she began to receive sympathy texts from PO Sezen in regards to her mother which at first were cordial and then became flirtatious in nature. [REDACTED] then stated on October 21, 2019 PO Sezen sent her a text message stating he was coming over to her apartment. [REDACTED] stated PO Sezen arrived at her apartment and began to hug and kiss her, which she did not approve of. [REDACTED] stated she attempted to stop PO Sezen, and in return, PO Sezen somewhat forcefully placed his hand over her mouth and brought her to the floor. [REDACTED] then stated PO Sezen straddled her while she was face down and began to massage her over her entire body, over her clothes, including her breasts and genitals. [REDACTED] stated PO Sezen then flipped her over and began to massage her front. [REDACTED] stated she allowed PO Sezen to do this because she was scared and did not want to make him more aggressive. [REDACTED] then stated PO Sezen sat up and told her since he massaged her that she has to massage him. [REDACTED] stated she massaged PO Sezen's chest area but not his pants area. [REDACTED] stated while she massaged PO Sezen's chest area he placed his finger in her butt which she did not approve of. [REDACTED] stated the contact was skin to skin, under her underwear. [REDACTED] further stated PO Sezen then took out his penis and began to masturbate himself. [REDACTED] stated when PO Sezen was about to climax he forced her to grab his penis and masturbate him until he climaxed. [REDACTED] stated after this occurred PO Sezen called someone at the 41st Precinct and asked them to put him present for duty.

2019-38996

The same complaint from log number 2019-38815 was reported to CCRB under OCD/CCRB # 201909227.

2020-7022

PO Sezen was modified by Lt. Sena, IAB Group 22, on March 4, 2020 at 1945 hours.

2020-22033

PO Sezen was issued Charges and Specifications

Identification and Interview of Complainant:

The complainant [REDACTED] F/H/66yo, who resides at [REDACTED] was interviewed by investigators.

[REDACTED] stated that her mother died in Dominican Republic and felt her death was suspicious. [REDACTED] went to Bronx Criminal Court to find out what could be done because nothing was being done in Dominican Republic and was referred to Surrogate Court. [REDACTED] stated she decided to go to the 41 Pct. first to inquire on October 14. [REDACTED] stated she went to the 41 Pct. and spoke to PO Sezen who was at the big desk with other Officers. [REDACTED] stated that her and PO Sezen went to the side to speak privately and PO Sezen provided her with his work phone number. [REDACTED] stated PO Sezen showed concern and was empathetic. [REDACTED] stated the following day, while working at Yankee Stadium, PO Sezen called her but she was not able to answer. [REDACTED] stated when she had a break she called him back and also texted him that she couldn't pick up the call because she was working. [REDACTED] stated PO Sezen began to ask her about the baseball game and then sent him pictures related to the game. [REDACTED] further stated she let PO Sezen know when she returned home from work. [REDACTED] stated PO Sezen told her she can call him if she needs anything or wants to talk. [REDACTED] stated she did not invite PO Sezen to her house but PO Sezen said he would visit her and she agreed. [REDACTED] stated PO Sezen reached out to her first. [REDACTED] stated she appreciated how PO Sezen showed his concern and felt he cared. [REDACTED] stated she needed a friend to talk to because she doesn't have friends and she was looking for a friend and not a boyfriend. [REDACTED] further stated PO Sezen is not her type but felt since he is a Police Officer she could trust him. [REDACTED] stated on October 21 PO Sezen sent her a message that he was going to come to her apartment around 8:45 PM to which she agreed. [REDACTED] stated that morning PO Sezen sent her a picture of himself working out and she found him cute and gave him a compliment. [REDACTED] also stated she sent him a picture of herself and family because she wants them to become friends. [REDACTED] stated they exchanged messages and pictures. [REDACTED] once again stated she was not looking for a relationship but just a friend. [REDACTED] stated PO Sezen arrived around 9:00 PM and she gave him instructions on how to enter the building. [REDACTED] stated when she opened the door PO Sezen gave her a tight hug and was telling her to give him a hug. [REDACTED] stated PO Sezen was big and strong and his hug was tight. Ms. [REDACTED] stated she did hug PO Sezen back. [REDACTED] stated she believed PO Sezen came to listen to her but she stated he was not interested in that. [REDACTED] stated PO Sezen told her that she is very tense and began to massage her over her entire body. [REDACTED] stated any time she tried to talk PO Sezen had his face on her face and PO Sezen would put his nose on her mouth to stop her from talking, while continuing to hug her and massaging her body. [REDACTED] stated at this point she was scared. [REDACTED] stated she was trying to stop him at the beginning because she wanted him there to talk and become friends, but PO Sezen kept placing his face on hers so she couldn't talk. [REDACTED] stated PO Sezen told her to lie down on the floor face down. [REDACTED] then stated PO Sezen straddled her and reached his hands to massage her from the front, on the breast area, then towards her back and legs. [REDACTED] then stated PO Sezen made her face him and began massaging her neck very hard while pulling her close to him. [REDACTED] stated she became more scared when she looked into his eyes. [REDACTED] stated after he massaged her he removed his shirt and asked her to massage him. [REDACTED] stated PO Sezen laid down on the couch and she massaged his chest. [REDACTED] stated she cooperated with him because she was trying to survive. [REDACTED] stated she has had past relationships where she was the victim of domestic violence where her ex-husband would violate her without her consent. [REDACTED] then stated PO Sezen was sitting on her left side and had his right hand behind her back. [REDACTED] stated his other hand was on her front, breast and arms, giving her a massage. [REDACTED] then stated PO Sezen placed his hand inside her underwear, from the back, and touched her anus. [REDACTED] then resisted PO Sezen. PO Sezen then unzipped his zipper and pulled out his penis and began to masturbate himself. PO Sezen then took her hands and placed it on his penis as they were both touching it during masturbation. [REDACTED] stated she participated because PO Sezen looked angry and whenever she said something he covered her mouth or placed his face on her face. [REDACTED] then stated PO Sezen sucked her fingers and toes. [REDACTED] stated PO Sezen spoke with a heavy accent and was difficult to understand but he kept repeating to her "You like it? You Like it??" [REDACTED] stated PO Sezen

stayed almost 3 hours and he did not want to leave. [REDACTED] stated she told PO Sezen that she thought he was there not support her and it was not right what he was doing, but PO Sezen did not respond. [REDACTED] stated she participated in the masturbation so that he would not penetrate her, which he did not. [REDACTED] stated PO Sezen ask her if she had condoms and she stated no. PO Sezen then stated she wanted to go to her bed but she refused. [REDACTED] stated she felt she was assaulted. [REDACTED] stated that before PO Sezen left he called the precinct, spoke to his partner, and asked him to sign him out. [REDACTED] stated PO Sezen made her feel like a prostitute. [REDACTED] stated she had only met him two times, once at the precinct and once on the night of incident. [REDACTED] stated PO Sezen uploaded an app, Vault, to her cellphone which stores pictures with a password. [REDACTED] stated PO Sezen took a photo of him kissing her using her cellphone and only smiled because she was scared. [REDACTED] further stated PO Sezen wanted to sleep over but she refused and he left without saying goodbye. [REDACTED] stated after the incident PO Sezen has attempted to call her and text her but she has not responded. [REDACTED] was shown a photo array and immediately identified PO Sezen.

A background check of [REDACTED] was conducted which revealed no information in DAS lite, CCRB (just current complaint), IAPRO and ICMS.

Identification and Interview of Witness(es):

N/A

Canvass:

Canvass for video was conducted which yielded numerous videos showing the movements of PO Sezen on October 21 and October 22. The following video was recovered:

1) Video from the 41st precinct show PO Sezen exiting the precinct at 2038 hours on 10/21/19. At 2040 hours PO Sezen's vehicle is seen traveling on Longwood Avenue and then onto Southern Boulevard. At 2044 PO Sezen's vehicle is seen continuing on Southern Boulevard.

2) Video from [REDACTED]'s apartment building showed PO Sezen arriving at her residence at approximately 2100 hours on 10/21/19 and ringing the doorbell. The video further shows PO Sezen leaving [REDACTED]'s building at approximately 0008 hours on 10/22/19.

3) Video from the 41st precinct shows PO Sezen's vehicle entering the parking lot of the precinct at 0020 hours on 10/22/19. PO Sezen is then observed walking around his car and entering the passenger side. At 0559 hours PO Sezen is observed walking toward the precinct. At 0601 hours PO Sezen is observed entering the precinct. At 0615 hours PO Sezen is observed leaving the precinct. At 0616 hours PO Sezen's vehicle is observed leaving the precinct parking lot.

Identification of Subject Officer(s):

PO Sezen: PO Sezen was positively identified by the complainant via photo array (#38815) which was presented to her.

Sgt. Beazer: Sgt. Beazer was identified as a subject by being listed as the Desk Officer on the 41st precinct roll call.

PO Alarcon: PO Alarcon was identified as a subject through phone records as being the person PO Sezen called while he was at [REDACTED]'s apartment to sign him out of the roll call.

Review of Department Records:

Roll Call:

The roll call for October 21, 2019 was reviewed to identify that PO Sezen was working a 1500x2335. The roll call further showed that Sgt. Beazer was the Desk Officer on October 21, 2019 on the 3rd platoon. The roll call also showed that PO Alarcon was working on October 21, 2019 on the 3rd platoon.

City Time:

City time was reviewed for October 21, 2019 which showed PO Sezen did not take lost time on this date.

Command Log:

The command log on 10/21/19 was reviewed and indicated that Sgt. Beazer was the desk officer. The command log did not indicate Sgt. Beazer was relieved at any point before his EOT. The command log does not show any entries pertaining to PO Sezen. Based on this information Sgt. Beazer was added as a Subject to this case.

Review of District Surgeon attendance:

A review of PO Sezen's visit to the district surgeon on 10/22/19 was conducted. The paperwork shows PO Sezen arrived at 0702 hours and departed at 0951 hours. PO Sezen does not request lost time until 1215 hours resulting in PO Sezen being unaccounted for 2:20.

Review of PO Sezen's Memo book:

A review of PO Sezen's memo book was conducted for the incident date which yielded PO Sezen did not separate his tours that he worked. PO Sezen did put together five consecutive days on one line and had entries for all five days together instead of each day separate.

Computer and Related Background Checks:

Background Check of PO Sezen:

A background check of PO Sezen was conducted which disclosed he was appointed to the Department on 07/01/2004, previously a Traffic Agent from 09/17/99-06/30/04, and at the time of incident was assigned to the 41st Precinct. A review of ICMS and IAPRO revealed 23 prior logs, none similar to this case. PO Sezen received charges and specifications on 05/09/18 for failing to prepare a report and was subsequently placed on level 1 monitoring. A CCRB check yielded 2 cases with none related to this investigation.

Background Check of PO Alarcon:

A background check of PO Alarcon was conducted which disclosed he was appointed to the Department on 07/11/2005 and at the time of the incident was assigned to the 41st precinct. A review of ICMS and IAPRO yielded 15 prior logs with none similar to this case. PO Alarcon has been on level 1 monitoring in the past for poor performance but is not currently on monitoring. A CCRB check yielded one prior case not similar to this case.

Background Check of Sgt. Beazer:

A background check of Sgt. Beazer was conducted which disclosed he was appointed to the Department on 07/01/2002 and at the time of the incident was assigned to the 41st precinct. A review of ICMS and IAPRO yielded 17 prior logs including one prior Fail to Supervise in 2019 in which Sgt. Beazer was exonerated. A check of CCRB was conducted which yielded 5 cases with none similar to this case.

LPR CHECK:

A LPR check was conducted on PO Sezen's vehicle for 10/21/19 - 10/22/19 which yielded:

On 10/21/2019 1624 hours- The vehicle was recorded parked on Bruckner Blvd and Longwood Avenue in front of the 41 Precinct.

On 10/22/2019 0626 hours- PO Sezen's vehicle is recorded leaving the Bronx via the RFK Bridge.

There is not hits on his car between 1624 hours on 10/21/2019 and 0626 hours on 10/22/2019

City Time Check:

A review of city time yielded PO Sezen was scheduled to work [REDACTED] on 10/21/19. City time does not indicate PO Sezen took lost time.

DASLITE and OMNI Audit:

An audit was conducted to ascertain if PO Sezen searched [REDACTED] or himself. The results were negative.

Conferrals Conducted:

The investigator conferred with the Bronx Integrity Unit, ADA Clements, and after fully investigating the case decided that no criminal charges will be brought against PO Sezen.

Proactive Measures:

On October 25, 2019 a controlled text message thread was conducted by Lt. Spanos, posing as [REDACTED] with PO Sezen. During the message exchange PO Sezen apologized for putting his hands around her neck and putting his finger in her butt. PO Sezen further admitted to hearing [REDACTED] say no to him. PO Sezen further stated that he must have put his finger in her butt by accident. During the controlled text PO Sezen never denied the allegations.

RFI:

An RFI request was conducted for PO Sezen which yielded no investigative value.

DNA Sample:

A DNA test on [REDACTED]'s dress was conducted which yielded no hits for PO Sezen

Handwriting Analysis:

A handwriting analysis was requested to see if PO Alarcon signed out PO Sezen but the test was no longer needed after PO Alarcon admitted during his PG that he did in fact sign PO Sezen out.

Phone records

A check of [REDACTED]'s phone records revealed numerous phone calls and text messages between her and PO Sezen.

A check of PO Sezen's personal phone records yielded a phone call to PO Alarcon on October 21, 2019 at 2325, which we determined was when he called to ask him to sign him out of the roll call.

Other Information of Investigative Value:

N/A

Patrol Guide 206-13 Hearings:

PG Hearing of PO Sezen (Subject Officer) - On Monday June 22, 2020 at approximately 1130 hours, while present at 315 Hudson Street, Lt. Carrero and Lt. Sena conducted a PG Hearing of PO Sezen. Mrs. Kate Conklin, PBA Attorney, was present and acting as representation for PO Sezen. Details are as follows:

PO Sezen stated he has been a Police Officer for 16 years with the NYPD. PO Sezen stated he has been assigned to PSA 4-Viper since March 4, 2020 and previously assigned to the 41 Precinct. PO Sezen stated before assignment to the 41 Precinct he was assigned to the 62 Precinct. PO Sezen stated he was transferred to the 41 Precinct because he was "jammed up" for not taking a report for an attempted kidnapping.

PO Sezen stated he owns a 2013 Chevy Suburban license plate [REDACTED] PO Sezen stated he owns a personal cellphone with phone number [REDACTED]

PO Sezen stated he was working on October 14, 2019 and worked a tour of [REDACTED] PO Sezen stated his assignment during this tour was as TS Operator. PO Sezen was showed a photo of [REDACTED] and asked if he knew the female in the photo. PO Sezen stated he does remember the female but did not recall her name. PO Sezen stated he does not remember the exact date [REDACTED] came into the Precinct. PO Sezen stated that [REDACTED] spoke to him about something in Dominican Republic with her mother.

PO Sezen stated he gave [REDACTED] his department cell phone number because he wanted everything official. PO Sezen stated [REDACTED] sent him follow up text messages about her incident. PO Sezen stated he didn't know what day he texted with her. PO Sezen was informed via cellphone records that he texted and called [REDACTED] on October 14. PO Sezen stated he texted and called her to make sure everything was ok and the conversation was only about [REDACTED]'s mother. PO Sezen then was informed via cellphone records that he sent text to [REDACTED] on October 15 stating "I am always here for you." PO Sezen stated he sent these messages because he felt bad for her.

PO Sezen was asked if he normally messages with complainants to which he replied no he just felt bad for [REDACTED]

PO Sezen was then informed via phone records that he continued to exchange text messages with [REDACTED] to which he stated all the conversations were just normal conversation and nothing else.

PO Sezen was then informed of text messages he sent on October 17 in which they speak about drinking wine and him wanting to be in his warm bed. PO Sezen does not seem to know how to respond and his lawyer, Ms. Conklin, insinuate to him that maybe he was sending these messages to make her feel comfortable and he agrees. PO Sezen further stated his messages were not sent to be sexual.

PO Sezen was then informed of a text message he sent on October 18 informing [REDACTED] to contact him through his personal phone. PO Sezen stated he gave her his personal phone because she kept contact him and didn't want to keep using the department phone and because he leaves his department phone at work. PO Sezen stated he told [REDACTED] if she wanted to call him while he wasn't working she can call his personal phone.

PO Sezen stated [REDACTED] was the only complainant he has ever given his personal cell phone number to. PO Sezen was asked if he was working on October 21.

PO Sezen was given his memo book and stated he was working on October 21 and was assigned to the TS and conducting a [REDACTED] tour. PO Sezen stated he put 5 consecutive days together on one line in his memo book to save space. PO Sezen stated he did not recall who was the desk officer for October 21.

PO Sezen stated he did not recall if he had text messages with [REDACTED] before October 21. PO Sezen was then informed about the text messages and photos he sent [REDACTED] in the morning of October 21.

PO Sezen stated he recalls sending the photos to [REDACTED]. PO Sezen stated he sent the photos because they felt closer but not in a sexual manner. PO Sezen stated his conversations never became flirtatious and was only speaking to her as a friend.

PO Sezen was informed of a text message in which he stated "want to share your solid body" and PO Sezen again stated they were just talking and not asking her to do something. PO Sezen stated he just wanted to share his opinion with her and it was not sexual.

PO Sezen stated he did have a conversation with [REDACTED] to go to her house. PO Sezen stated [REDACTED] invited him to her house and it was to just talk to her. PO Sezen stated he did go to her house on October 21 after work. PO Sezen stated he went to her house around 12:00AM. PO Sezen's lawyer then intervened and asked if he was not sure the time and he stated he wasn't sure but it was after work.

PO Sezen was then shown a video of him leaving the Precinct at 2038 hours. PO Sezen stated he probably took lost time. PO Sezen was then showed the video of him leaving the Precinct parking log in his vehicle. PO Sezen was then showed a video of him arriving at [REDACTED]'s residence at 21 00 hours, PO Sezen was informed the time stamp was 20 mins off. PO Sezen stated he was wearing a t shirt and cargo work pants when he arrived to [REDACTED]'s residence. PO Sezen stated he went to her house to just talk to her. PO Sezen stated he was on the phone with [REDACTED] when he was outside her residence. PO Sezen was then asked if Sgt. Beazer or PO Alarcon knew that he was going to [REDACTED]'s residence and he replied he took lost time. PO Sezen stated neither Sgt. Beazer, PO Alarcon or any other MOS knew he was going to [REDACTED]'s residence. PO Sezen stated he was not sure how long he stayed at [REDACTED]'s house but maybe it was 2-3 hours.

PO Sezen stated [REDACTED] and himself were the only two people in the apartment. PO Sezen stated him and [REDACTED] just talked about numerous things. PO Sezen stated [REDACTED] was laughing, then crying, and then smiling. PO Sezen stated

he did not give [REDACTED] a massage and only hugged her. PO Sezen stated when he arrived he shook [REDACTED]'s hand and then stated he gave her a hug like two guys would hug. PO Sezen stated he did not tell [REDACTED] to lay down on the floor. PO Sezen stated he did not touch [REDACTED]'s breast. PO Sezen stated he did not take off his shirt and did not ask her to massage him. PO Sezen stated [REDACTED] did not massage him on the couch. PO Sezen stated he did not stick his finger in [REDACTED]'s anus. PO Sezen stated he did not attempt to stick his finger in [REDACTED]'s anus. PO Sezen stated he did not unzip his pants and pull out his penis. PO Sezen stated he did not masturbate himself. PO Sezen stated he did not grab [REDACTED]'s hand and place it on his penis to help him masturbate. PO Sezen stated he did not ask [REDACTED] if she had condoms. PO Sezen stated he did not ask [REDACTED] to go to the bed. PO Sezen stated he did not ask her to spend the night.

PO Sezen stated the topic of him sleeping over never came up. PO Sezen stated [REDACTED] did not say she wanted to have sex with him. PO Sezen stated [REDACTED] did not state she wanted to masturbate him. PO Sezen stated [REDACTED] did not indicate she wanted him there for anything but to talk. PO Sezen stated he did not get sexually aggressive with [REDACTED]. PO Sezen stated he did not act inappropriately in [REDACTED]'s apartment.

PO Sezen stated he did apologize to [REDACTED] for his actions and behavior in her apartment. PO Sezen was asked why he apologized if he did not do anything and he replied because he gave her the comfort with a hug. PO Sezen stated he did not have wine with [REDACTED]. PO Sezen stated again he apologized because he gave her the hug and maybe she misunderstood.

PO Sezen was informed of a text message he sent on October 23 of him apologizing for his actions and he stated he sent the message because he thought she was upset about the hug and wanted to apologize again. PO Sezen stated he was apologizing because she seemed upset because he couldn't help her with her situation.

PO Sezen stated nothing that [REDACTED] is claiming happened. PO Sezen stated he only hugged her about 3-4 times. PO Sezen stated [REDACTED] at the time, did not object to his hugs.

PO Sezen was then informed of his text message exchange where [REDACTED] claims all the things that he did to her on October 21 and how he was apologizing over and over. PO Sezen was informed of how [REDACTED] asked why he choked her, why he put his finger in her butt and how he apologized to her. PO Sezen stated he only apologized because he felt if that how she felt he needed to apologize but stated nothing that she claimed actually happened. PO Sezen stated [REDACTED] was twisting words and only apologize to deescalate the situation so that she wouldn't bother him anymore.

PO Sezen reiterated that his responses to [REDACTED]'s text were because he didn't want to have an argument with [REDACTED] and nothing of what she was claiming was true.

PO Sezen stated after he left [REDACTED]'s residence he went home. PO Sezen was then showed a video of him driving toward the 41 precinct and arriving back at the 41 precinct. PO Sezen then stated he probably did go back and slept in his car. PO Sezen was then showed that he exited his vehicle around 0600 and entered the 41 Pct.

PO Sezen stated he was not on duty when he went to [REDACTED]'s residence and in fact took lost time.

PO Sezen was asked if he called PO Alarcon to sign him out on the roll call while he was at [REDACTED]'s residence. PO Sezen was informed that we had phone records that he made a call to PO Alarcon at 2325 hours.

PO Sezen stated he did not recall. PO Sezen stated he does not recall having PO Alarcon signing him out on the roll call.

PO Sezen was shown city time records that do not indicate him taking lost time on October 21 and he responded he does not recall.

PO Sezen was asked why he thinks it was ok to go to [REDACTED]'s residence on job time and he replied he thought it was after work.

PO Sezen stated he recalls going to the medical district on October 22 and starting his tour at 0600. PO Sezen stated he was going to the medical district in regards to his LOD injury. PO Sezen was shown his clinical visit sheet showing that he arrived at the medical district at 0702 hours and left at 0951 hours. PO Sezen was asked if he went back to work after leaving and he stated he tried to but was stuck in traffic. PO Sezen stated he doesn't recall if he got back to work and requested to look at his memo book. PO Sezen stated he probably missed timed an entry but he knows he called and went back to the precinct. PO Sezen was showed a 28 that shows he took lost time at 1215 and he believes he probably called to take lost time.

PO Sezen stated for the 2:50 he was not accounted he was probably on the road because he takes it slow because of the pain he has. PO Sezen stated he was on the way to the precinct when he called for lost time. PO Sezen stated he had to pull onto the side of the road to rest because of the pain he had.

PO Sezen was informed that cell pings can be obtained and it could be determined whether he was driving from Lefrak to the precinct in the Bronx or from Lefrak to his home in [REDACTED]. PO Sezen then stated he was actually on his way home from Lefrak to retrieve his medication for his pain. PO Sezen stated he was planning on going back to work after getting his medicine. PO Sezen stated he called for lost time from his house. PO Sezen stated he took the lost time from his home in order to save his time.

PO Sezen stated he made his memo book entries on one line because he has been TS. PO Sezen admitted that his memo book was not done correctly. PO Sezen further stated his memo book for October 22 was done incorrectly showing a 1500 start when in fact he did a 0600 tour.

PG Hearing of PO Alarcon (Subject Officer):

A PG Hearing of PO Alarcon, tax # 937953, was conducted on July 20, 2020. During the PG PO Alarcon admitted to signing PO Sezen out on the return roll call on October 21, 2019. PO Alarcon stated he did not know where PO Sezen was when he signed him out but believed he was just upstairs already changed out of his uniform. PO Alarcon stated he did not know PO Sezen went to a female's apartment during his tour.

PG Hearing of Sgt. Beazer (Subject Officer):

A PG Hearing of Sgt. Beazer, tax # 929696, was conducted on July 20, 2020. Sgt. Beazer stated that on October 21, 2019 PO Sezen was working as the TS Operator while he was the Desk Sergeant. Sgt. Beazer stated he was responsible for PO Sezen during his tour. Sgt. Beazer stated he does not recall PO Sezen leaving the command and does not know where he was going. Sgt. Beazer stated he would never allow a MOS to leave the precinct while he is Desk Officer but stated as Desk Officer the precinct is busy. Sgt. Beazer stated sometimes the MOS assigned to the TS and the MOS assigned to the 124 room break up the day giving each other breaks. Sgt. Beazer admitted that he should have known of PO Sezen's whereabouts during the tour. Sgt. Beazer stated he never entered into the command log that he was relieved during his tour but he has a condition that requires him to use the bathroom often. Sgt. Beazer stated he did not sign PO Sezen out of the return roll call and does not know who did. Sgt. Beazer stated he does not know where PO Sezen went during his tour. Sgt. Beazer stated he did not know PO Sezen went to a female's apartment during his tour.

PG Hearing of Sgt. Rivera (Witness):

A PG Hearing of Sgt. Rivera, tax # 943735, was conducted on July 16, 2020. Sgt. Rivera stated she recalled the conversation she had with [REDACTED]. Sgt. Rivera stated that she does not recall [REDACTED]'s demeanor during the conversation. Sgt. Rivera stated, at the time, she believed [REDACTED] to be credible.

PG Hearing of PO McClain (Witness) :

A PG Hearing of PO McClain, tax # 943544, was conducted on July 16, 2020. PO McClain stated he recalled his conversation with [REDACTED]. PO McClain stated when he spoke to her she was visibly upset at the situation. PO McClain stated that during his conversation with [REDACTED] he felt bad for her.

Supervisory Deficiencies:

During the course of the investigation it was determined that Sgt. Beazer failed to supervise PO Sezen during his tour. Sgt. Beazer did not account for PO Sezen's whereabouts from 2040 hours to 2335 hours on 10/21/19.

Conclusion:

On October 24, 2019 [REDACTED] made a complainant that PO Sezen came to her apartment and sexually assaulted her on October 21, 2019. During the course of the investigation we were able to positively identify that PO Sezen did go to [REDACTED]'s apartment on October 21 through both video cameras and during the PG interview of PO Sezen. Based on video we were able to prove that PO Sezen misused time and based on PG hearing theft of time. After conferral with the Department Advocate's Officer it was determined based on the evidence and [REDACTED]'s statements there was enough proof to substantiate that PO Sezen did forcibly touch [REDACTED] while at her apartment. PO Sezen was further issued a letter of referral for improper activity logs.

During the course of the investigation, after reviewing department records, it was determined that someone signed PO Sezen out on the roll call on October 21. After getting phone records and conducting a PG hearing on PO Alarcon, in which he admitted to signing PO Sezen out, we positively identified PO Alarcon as the person who signed PO Sezen out on the roll call.

During the course of the investigation it was determined that Sgt. Beazer was the Desk Officer on October 21 and ultimately responsible for the whereabouts of PO Sezen. After a PG hearing of Sgt. Beazer and review of department records it was determined that Sgt. Beazer failed to supervise PO Sezen and did not know where he was for almost three hours during his tour.

In conclusion it was proved that PO Sezen did misuse time, commit theft of time, and forcibly touched [REDACTED]. It was also proved that PO Alarcon signed PO Sezen out on the roll call. Finally, it was proved that Sgt. Beazer did fail to supervise PO Sezen during his tour.

-Attachments:

- Charges and Specifications (PO Sezen)
- B-CD (PO Alarcon)
- C-CD (Sgt. Beazer)
- (3) Notice of dispositions
- Letter to C/V
- Letter of referral

Subjects Involved

Name	Status	Sex	Race	Dob
	UNIFORM MEMBER OF SERVICE	MALE	BLACK	[REDACTED]

929696 AVLON BEAZER SGT (041-041 PRECINCT)					
Allegations					
1	Full Allegation Failed to Supervise -	Classification Abuse of Dept Regulations	Allegation Index FTS-Fail to Supervise	Allegation Date 12/16/2019	Finding 07 - Substantiated Finding Date 12/07/2020
	Comments The above allegation is being closed as Substantiated. After a thorough investigation it was determined S/O did wrongfully and without just cause fail to supervise a member of the service under his supervision. A Schedule C-CD was issued, DAO Serial # 2020-75. A penalty of 10 vacation days was issued.				
Name 935726 YUSUF SEZEN POM (041-041 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]
Allegations					
1	Full Allegation Crime (Not Domestic) - Sex Crime - Criminal Sexual Act	Classification Crime	Allegation Index SEX-Sex Crime	Allegation Date 10/24/2019	Finding 12 - Unsubstantiated Finding Date 09/13/2020
	Comments The above allegation is being closed unsubstantiated due to the fact that during the investigation it could not be proved or disproved that S/O penetrated the C/V in the anus.				
2	Full Allegation Misuse of Time - On Straight Time	Classification Abuse of Dept Regulations	Allegation Index Misuse of Time/AWOL/OT Abuse	Allegation Date 10/24/2019	Finding 07 - Substantiated Finding Date 09/13/2020
	Comments The above is allegation will be closed as substantiated and is referenced in the Charges and Specification under Specification # 2. It was determined that S/O went to the home of the C/V during his tour and did not return to his post for the remained of his tour.				
3	Full Allegation Additional Information Prior Log -	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 10/26/2019	Finding 04 - Info. and Intelligence Finding Date 09/13/2020
	Comments The above allegation will be closed as Information and Intelligence.				
4	Full Allegation Theft of Time -	Classification Abuse of Dept Regulations	Allegation Index TTIME-Theft Of Time	Allegation Date 12/15/2019	Finding 07 - Substantiated Finding Date 09/13/2020
	Comments The above is allegation will be closed as substantiated and is referenced in the Charges and Specification under Specification # 3. It was determined that S/O was absent from his assignment without permission or police necessity when S/O failed to return to his command after his Medical Division appointment.				
5	Full Allegation Official Misconduct -	Classification Crime	Allegation Index OM-Official Misconduct	Allegation Date 03/05/2020	Finding 12 - Unsubstantiated Finding Date 09/13/2020
	Comments The above allegation is being closed as Unsubstantiated due to the fact that after conferral with the Department Advocate it was determined this incident does not rise to the level of Official Misconduct.				
6	Full Allegation Crime (Not Domestic) - Sex Crime - Other Sex Crime	Classification Crime	Allegation Index SEX-Sex Crime	Allegation Date 03/05/2020	Finding 07 - Substantiated Finding Date 09/13/2020
	Comments The above is allegation will be closed as substantiated and is referenced in the Charges and Specification under Specification # 1. It was determined that S/O inappropriately touched the breasts, genitals and buttocks of he c/v				

7	Full Allegation Crime (Not Domestic) - Sex Crime - Other Sex Crime	Classification Crime	Allegation Index SEX-Sex Crime	Allegation Date 03/05/2020	Finding 12 - Unsubstantiated	Finding Date 09/13/2020
		Comments The above allegation is being closed unsubstantiated due to the fact that during the investigation it could not be proved or disproved that S/O committed the act of Sex Abuse against the C/V				
8	Full Allegation Modified MOS - Other - IAB	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 03/04/2020	Finding 04 - Info. and Intelligence	Finding Date 09/13/2020
		Comments The above allegation will be closed as Information and Intelligence.				
9	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 05/14/2020	Finding 24 - Minor Procedural Violation	Finding Date 09/13/2020
		Comments This allegation is being closed as a Minor Procedural Violation due to the fact during the course of the investigation S/O did not properly maintain his memo book in that he listed multiple dates on the same line. A letter of referral is being issued in regards.				
10	Full Allegation Impede Investigation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 06/23/2020	Finding 12 - Unsubstantiated	Finding Date 09/13/2020
		Comments This allegation is being closed as Unsubstantiated after conferral with the Department Advocate. After conferral it was determined S/O, after being confronted with evidence to contradict his statements, S/O corrected his answers in a reasonable time and without causing additional investigative steps to be conducted by the I/O				
11	Full Allegation Official Statement - Misleading Statement - PG	Classification Perjury/False Statements	Allegation Index GO15-PG 206-13	Allegation Date 06/23/2020	Finding 12 - Unsubstantiated	Finding Date 09/13/2020
		Comments This allegation is being closed as Unsubstantiated after conferral with the Department Advocate. After conferral it was determined S/O, after being confronted with evidence to contradict his statements, S/O corrected his answers in a reasonable time and without causing additional investigative steps to be conducted by the I/O				
12	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 09/21/2020	Finding 04 - Info. and Intelligence	Finding Date 09/13/2020
		Comments The above allegation will be closed as Information and Intelligence.				
Name 937953 DONTÉ ALARCON POM (260- DET BORO BRONX)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race BLACK	Dob [REDACTED]
Allegations						
1	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 12/17/2019	Finding 07 - Substantiated	Finding Date 11/19/2020
	Other Dept Rules/Procedures Violation Details Signing out another MOS on Roll Call	Comments The above allegation is being closed as Substantiated. During a Patrol Guide hearing S/O admitted to signing another MOS out on a roll call on 10/21/19. S/O was issued a Schedule B CD . Serial # 2020-041-21, and issued a penalty of eight (8) vacation days.				
ATTACHMENT						

1	 'C-CD (Sgt. Beazer)'
2	 'Letter to Complainant'
3	 'Notice of Disposition (PO Sezen)'
4	 'Notice of Disposition (PO Alarcon)'
5	 'Letter of referral'
6	 'Notice of Disposition (Sgt. Beazer)'
7	 'B-CD (PO Alarcon)'
8	 'Charges and Specifications (PO Sezen)'

Reporting Officer:	Rank DT3	Name DELLAMONICA JONATHAN		Tax Reg. No. 948536		Command G22-GROUP 22
Reviewing Supervisor:	Manner of Closing CM - PARTIALLY SUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Date Reviewed 01/28/2021	Date of Next Review	Name SHEA THOMAS		Supv. Tax No. 899848
Endorser:	Rank LT	Name CARRERO JAMES	Tax Reg. No. 929840	Command G22-GROUP 22	DateTime Reviewed 01/25/2021 15:52	Status Approved
	Comments [REDACTED]					
Endorser:	Rank DI	Name DONNELLY JAMES	Tax Reg. No. 903823	Command G22-GROUP 22	DateTime Reviewed 01/26/2021 12:36	Status Approved
	Comments [REDACTED]					
Endorser:	Rank DI	Name VIERLING LOUIS	Tax Reg. No. 919823	Command Z01-ZONE 1	DateTime Reviewed 01/27/2021 14:28	Status Approved
	Comments [REDACTED]					

Endorser:	Rank INS	Name SHEA THOMAS	Tax Reg. No. 899848	Command Z01-ZONE 1	DateTime Reviewed 01/28/2021 11:39	Status Approved
	Comments APPROVE CLOSING.					